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Chapter One

1.1. Introduction to Civil Procedure: Conceptual and Historical Background

Laws can be broadly classified into substantive and adjective legal rules. Adjective rules are, in turn, subdivided into procedural and evidence laws with the former constituting the major portion of it.

Substantive laws, for the most part, define rights, duties, privileges and liabilities of persons and set out regulatory norms for their mutual relations in their ordinary course of life. **Procedural laws** are means to the end contemplated or sought to be achieved by substantive laws, with securing the just, speedy and inexpensive disposition of civil cases in the administration of justice.

Substantive laws: predefining rights and the corresponding duties in an intelligibly ascertainable manner- in contemplation to adjusting human conducts at various levels of relationships so as to ensure individual freedom within the context of public order and societal harmony.

✚ Procedural irregularities (problem) affect the ultimate fate of litigation dramatically not less than the substantive problems.

Prescription without application is nothing but pretense. This means that the rights and duties envisaged by the laws would mean nothing unless they are fully enforced; most importantly, when they are breached or violated.

The existence and proper application of effective and efficient rules of procedure, hence, does not solely avoid the potential evils consequent to such unfortunate events. **Unless** there exists a normative framework and an institutional structure by and through which a wrongful conduct is peacefully and formally restrained, and the injured victim is proportionally remedied; the latter is likely to “take the laws into his hands”

The function of procedural rules, to which civil procedure belongs, to govern as to how claims of persons are prepared; where and when presented; and, how determined and finally enforced by a court of law. Procedural rules, in essence, give effect (“life”) to the ends sought to be achieved by substantive laws.

Laws affecting substantive rights are, in principle, construed to be non-retroactive in effect; i.e., such legislation does not apply or affect as regards facts or events (transactions) which took place before

the legislation came into force. The law of procedural rules, on the other hand, is commonly deemed operative from the day of their coming into effect to all cases pending in such very day and thereafter (See, Art 1 CPC)

A court dealing with a given case shall not have regard to the substantive period of limitations unless it is pleaded by the parties' see 1856(2) of CC. and a court can't grant the incidental right, unless it is claimed of by the parties themselves.

✚ period of limitations **also called** statute of limitations

Procedural rules govern the process of litigation; regulate the conduct of relations between the litigants and the court with respect to the proceedings; and, as such, is called "**law of action**" reflecting the dynamic aspect of the rules of substantive laws. Substantive rules represent "**law at rest**", so to say; while procedural rules denote "**law of motion**".

1.2. Civil Vs. Criminal Procedures: Scope of Application

Legal interests affected in a civil dispute are to be **initiated and instituted** in a court of law by the aggrieved party himself (or his legal pleader); wherein **law enforcement organs are but** to avail remedies for those who have valid claims. **In other words**, in a civil litigation, the judge is there, to decide **whether any legal right of the plaintiff is affected**; and, if so, **whether one is entitled to any relief**. It thus follows that **the main purpose of administration of civil justice is primarily to enforce rights**; and, hence, a civil case may end up in an award of compensation to the individual victim or dismissal of the case.

Penal prosecutions, being the concern of the public at large, **have the final aim of ensuring the overall peace and security of the nation as a whole** and, may result into an acquittal or conviction (punishment) of the accused.

All legal disputes before a court of law are remedial/ civil or penal in nature.

The relief demanded in a civil case is mostly the payment of money or is usually to be assessed in monetary values, a specific relief (personal performance) or forced performance of legal obligations, such as, restitution or delivery of goods or an injunction could also be demanded.

A court entertaining a civil litigation cannot, in principle, impose a sanction depriving a party of his personal liberty. **However** one, who either refuses to furnish security for appearance-while the case is

pending- (Arts 147-150);or, fails, without good cause, to satisfy a decree(Art 389), may exceptionally be detained in a civil prison for a period not exceeding six months.

Civil cases are subject to negotiations; and, hence, a compromise could be reached upon independently between the parties themselves. In contrast to this, criminal cases are not subject to such alternative dispute settlement mechanisms. Unless the case falls within the category of **“offences upon complaint”**

A certain single act may give rise to both a civil and a criminal case whereby the parties are at liberty to negotiate over the civil aspect of the matter.

1.3. The Purpose of Civil Procedure Vis-à-vis Fundamental Procedural Rules

Civil procedure aim to ensure that disputes are handled by an impartial legal tribunal in a fair and orderly manner and as expeditiously and economically as possible. The efficacy of the law of civil procedure is measured against and is considered valuable in so far as it is employed in such a way as to enable the court to make a fairly prompt dispensation of civil justice.

“Justice Delayed...”, is “justice denied”, it is also equally true that “justice rushed is justice crushed!”, meaning, sketchy judgments rendered at the expense of justice in a manner that obstructs or destroys justice itself would amount to a miscarriage of justice potentially jeopardizing the administration of justice.

1.3.Criticisms on the civil procedure code both in the spheres of the legal profession and the litigating public.

- a. Indeterminable number and complexities of the procedural steps followed in the litigation process;
- b. Lack of procedural transparency;
- c. The great uncertainty of the governing rules and the irreconcilably divergent inconsistencies in the application of the law and these are some of the distinguishing features of our judicial processes.

There is saying: “It is better to be sued and stand as a defendant in our courts than claiming one’s right through them as a plaintiff”. Because Victims may, at times, go even to the extent of **relinquishing** their claims than demanding them through the existing intricate procedures due to the intolerably sluggish, inefficient, unpredictable and costly litigation processes.

Fair Hearing of a Suit/Impartiality of the Courts

- A. **Neutrality of the Presiding Judge:** Any person who sits in judgment over the interests of others must be able to bear an impartial and objective mind to the question in the controversy; i.e. he/she should impart justice without fear or favor.

There are two attributive features of impartiality.

1. Subjective impartiality, which refers to the impartiality of the judge himself.
2. Objective impartiality of the tribunal; i.e., the tribunal/ court should provide the public with the guarantee that it operates impartially; i.e., conditions that avoids suspicions of impartiality.

✚ ***The impartiality of the judge (the subjective one) alone is not sufficient- there must be conditions that warrant the impartiality of the court (the objective one).***

✚ ***Impartiality is not only about just ends, it also is concerned about just means.***

- I. **Personal Bias:** arises from friendship, relationship (either personal or professional) or hostility or animosity against either of the parties; or, negativity from personal prejudices; or even political rivalry.
- II. **Pecuniary Bias/ Bias as to the Subject- Matter.** Legal maxim: *“nemo judex in cause sua”*, No one should be a judge in his own case!

Presiding judges are under obligation to withdraw themselves from the proceedings

B. Right to be Heard: Nobody should be condemned unheard!

Any one against whom an action is taken or whose right or interest is, thereby being affected should be aware of the information against him and should also be granted a reasonable opportunity to defend himself. The governing maxim in this case runs: *“audi alter am par tem”*, meaning “Hear the other side”

- C. **Equality of Treatment** Everyone is prima-facie equal before the law This principle implies equal subjection of all persons to the ordinary laws of the land

There are three fundamental pillars used as ultimate test of procedural fairness (equality)

1. **Equipage Equality:** implies equality between the litigants in preparing their respective pleadings, in getting legal aids (services), in searching for evidence etc., irrespective of their differences in income levels. *For instance* if a party is allowed to amend or alter his pleading same opportunity should be granted, when the circumstance so requires, to the other party. See art 91 of CC.

2. **Rule Equality:** Under similar circumstances, each party should be subjected to and protected by, similar rules. Same issues should be resolved through similar legal rules. For instance, representation is allowed for a “brother”, (art. 58(a)) the same rule should apply for a “sister’s” representation-though not expressly articulated therein.
3. **Outcome Equality:** Similar issues, under same grounds /circumstances, should have similar outcomes. E.g. “class action” is allowed-pursuant to Art 38. Generally, speaking like cases should be treated alike.

1.4. Public Hearing of a Suit

“Justice must not only be done but must also be seen being done”

The public at large must have access to the litigation process (court-room) **save exception** wherein courts may consider cases in a closed chamber (“in Camera”).

Independence of the Judiciary and Accountability of the Judges

I. Judicial Independence

- II. **Functional/Personal Independence:** in the process of discharging their judicial tasks, judges should be free, internally, from their own colleagues and/or from the influence of superior courts; or, externally, from any kind of outside intrusion, fear or influence; and they should solely be bound and guided by the law.

II. Accountability of the Judges: Independence does not mean and should not lead to irresponsibility and arbitrariness.

Independence of the judiciary should not be taken as a special privilege of the judge himself. In addition to availing workable normative and institutional protective measures, litigants should be offered reasonably adequate appellate opportunities; judges should be ready and bold enough to receive criticisms on their decisions or analysis of the issues.

Establishment of Courts by Law:

The structures of the courts; their hierarchical relations and their comparable jurisdictions have to be explicitly constituted by law; and, only courts so established can assume judicial function.

Modes of Proceedings***The Adversarial Procedure:***

Traced from early Anglo-Saxon court proceedings, is typical feature of English judicial process, other countries such as the USA, Australia and New Zealand do also belong to this category.

Characteristics of an adversarial system of the proceeding:

The parties themselves (or represented by their advocates) shoulder the burden of initiating, shaping and fixing the scope of the litigation.

It is believed that the truth is most likely to emerge as a bi-product of the vigorous combat between intensely partisan advocates.

It is “**litigant-driven**” fact-finding process

Judges play a relatively passive role; their function is limited to regulating the proper conduct (smooth flow) of process. Thus, the judge is merely there as an impartial umpire to see to it that the rules of the game are evenly and properly observed by the players.

The Inquisitorial Procedure

It is chiefly employed in the judicial proceedings of the Continent Europe (France and Germany)

It is self-expressive in that the judges can inquire deep into the merits of the case so as to be able to decide on what the real issues between the parties are.

Judges can order the parties to produce further evidence and critically examine the witnesses of either side, if and when they are of the opinion that a fair decision cannot otherwise be reached.

The system envisages a more active role for the judges to play

- ✚ Prime difference between the two modes of litigations lies mainly on the degree of the roles played by the judge vis-à-vis the actual parties to the case.

Mode of Ethiopian court proceedings.

The basic material source of the Code is observed to be the 1908 Indian Code of Civil Procedure. Plausibly propound that the Code was extensively influenced by and originated from the Common Law Tradition-to which the UK was (and still is) the typical representative.

Salient Features of the 1965 Civil Procedure Code

In our code there are also blatant mismatches between the Amharic and the English versions. For instance, In relation to the pleadings, Art. 80(2) of the Amharic text make the use of the forms indispensably mandatory, while such a strict prescription is missing from the English version. **Surprisingly**, Art 244(4) of the Amharic Code stipulates that non- observance of formal requirements cannot be a ground for a preliminary objection. This becomes, at times, a source of fierce conflict in the effective application of the provisions of the Code.

The other problem is that our substantive laws are essentially derived from the civil law legal system whereas the procedural law is from sources substantially influenced by the common law tradition.

CHAPTER TWO

JUDICIAL SYSTEMS IN ETHIOPIA AND JURISDICTION OF COURTS

Jurisdiction of courts is the power of a court to hear and render a binding decision.

2.1. The Ethiopian Judicial System: Past and Present

Before the end of the 19th century, there was no formally established and systematically institutionalized judicial structure in Ethiopia. It was the 1931 written Constitution that is considered as the beginning of a new era in the establishment of the modern judicial system. Pursuant to the stipulation of the Constitution, hence, Proclamation No 21/1942 (formally called the Administration of Justice Proclamation, was enacted. Accordingly six levels of courts were set up.

The 1965 Civil Procedure Code-which, in turn, established four levels of courts: the Woreda Guezat Court, Awradja Guezat Court, High Court and Supreme Imperial Court.

The Present Dual Court Structure

The 1995 Constitution constituted a federal state structure whereby powers are divided between the Federal and Regional Governments. *Hence, by adopting a federal state structure, one can say that Ethiopia came to have a double layer of sovereignty.*

By virtue of the Constitutional stipulations, while the Federal Supreme Court sits solely in Addis Ababa, the Federal High and First Instance Courts sit in Addis Ababa, Dirre Dawa and in such other places as may be deemed necessary by the HPR.

2.2. Jurisdiction of Courts: Essential Elements

It determines where a given case is to be brought, or it refers to the power of courts, to hear and determine a case; thereby, rendering a binding judgment. A person can legitimately institute a law suit only in a court so empowered.

2.2.1. Essential Elements

1. Judicial Jurisdiction:

Refers to the legal competence of the courts of a particular nation or state to exercise a judicial power. The issue of judicial jurisdiction normally arises when there is a “foreign element” in a case appearing before a court of a given state.

A case is said to have involved a foreign element:

- If either of the parties is a foreigner to that state or
 - The transaction or property, which is the subject matter of the suit, is occurs or is situated outside of the territorial boundaries of that state.
- ✚ A court’s judgment of a given country may be enforced in another country on the basis of **bilateral or multilateral treaties and concession of reciprocity**

For instance, a foreigner without any property in Ethiopia is found to be subject to the jurisdiction of Ethiopian courts, the judgment passed against him will be enforced in his home state. Accordingly, the plaintiff (judgment-creditor) is not to file another suit on the merits of the case in that state; but, simply makes a formal application for the enforcement of the Ethiopian judgment.

The issue of judicial jurisdiction is, in practice, a procedural matter, it is, in most countries treated as one of private international law, and the rules governing it are found in the latter area.

Judicial jurisdiction are distinctively put as “in Personam” (over a person) and “in Rem” (over a thing) jurisdiction.

A. Jurisdiction in Personam

An action in Personam, which is the usual kind, is brought against a person, natural or legal, and seeking a relief against the person of the defendant.

Ethiopian courts are held to assume judicial jurisdiction in Personam where either of the following requirements are fulfilled:

- The defendant is an Ethiopian national or domiciliary; or,
- The defendant has consented (expressly or impliedly) to the exercise of jurisdiction by the Ethiopian court; or,
- The act which is the subject matter of the suit occurred or is situated in Ethiopia.

I. Nationality or Domiciliary of Defendant

The first and the most common factor on the basis of which Ethiopian courts will establish judicial jurisdiction. A defendant who is either Ethiopian national or domiciliary is subject to Ethiopia's judicial jurisdiction even though the transaction which gave rise to the suit occurred outside of Ethiopia.

NB. It is the defendant's status that matters.

If both parties are Ethiopian nationals, the issue of judicial jurisdiction would not arise as Ethiopian courts have the jurisdiction over them. Hence, at least, one of the parties, specially the defendant, has to be a foreigner for a question of judicial jurisdiction to arise.

II. The Doing of an Act

If the subject matter of the suit occurred in Ethiopia, an Ethiopian court will have judicial jurisdiction- even-though the defendant is a foreigner or not an Ethiopian domiciliary.

Although some of the acts occurred outside Ethiopia, the transaction has sufficient contact with Ethiopia, rendering it is reasonable for Ethiopia to hear a suit involving the transaction.

III. Consent of Parties

Even though a party is not otherwise subject to the Ethiopian jurisdiction, he can consent to the assumption of such jurisdiction by the courts. **Consent may be express or implied.**

- It is said to be express if it is orally (verbally) made or written.
- **Implied (by implication from behaviour of party) – E.g. If not raised as an objection – presumed waived pursuant to article 244 (2)& (3)**

B. Jurisdiction in Rem

Latin term “**in rem**” means, “against the thing/property”. An “action in rem” is, directed against property and the relief sought pertains to the property itself- without reference to the title of individual claims or specific person.

A judgment in rem settles the destiny of the res (property) itself (or of some interest therein) not merely as between the parties themselves

It will only be the courts of the state wherein the property is situated that can, more realistically, exercise in rem jurisdiction. Put another way, the “situs of property”, has jurisdiction over the case whereby the relief is sought with respect to the property itself.

2. Material jurisdiction

Matters outside the Jurisdiction of Courts

A judicial power does not make the courts competent to see all kinds of cases referred to them. Limitations are put to judicial power as courts are made to see cases so long as only they are justiciable ones (See Art 37 of the FDRE Constitution). In some instances, regular courts are not to forthrightly rush into adjudicating every law suits brought before them. Thus such **a court has to, make sure that the case instituted therein is not one of the nature made to fall partly or wholly outside the jurisdiction of ordinary courts.**

There are certain issues identified by law to be treated by other tribunals entrusted with delegated, quasi-judicial power-so as to decide on some conflicts related to administrative activities and functions of the government. The prominent administrative tribunals established in Ethiopia include:

- 1) **The Tax Appeal Commission** sees cases related to tax complaints;
- 2) **The Civil Service Tribunal** entertains grievances concerning civil servants; and
- 3) **The Labor Relations Board** competent to deal with employee-employer (labour) disputes.

Therefor party may not directly file his case to a regular court from the outset-before exhausting all the available remedies in that system. However, an appeal is allowed to be taken to the regular court from the decision of these tribunals; particularly on issues of law.

- **Sharia Courts (its jurisdiction is entirely consensual)**, some personal and family matters involving Muslims (such as issues of marriage; divorce; maintenance; succession, etc.) may also fall outside the jurisdiction of regular courts.
- **Disputes settled by arbitration or compromise** are also outside the ambit of the regular courts.
- **Certain matters of purely political or administrative nature** are also considered to be non-justiciable and cannot be entertained by regular court.

The proclamation No. 1234/2021 employed three separate parameters so as to determine the material (subject-matter) jurisdiction of the Federal Courts on a given lawsuit.

1. The nature and status of the law on which the case is based

- A. If the case is based on the Federal Constitution, Federal laws, or, international agreements (treaties), then, it fall under the Federal Courts" subject-matter jurisdiction. **Federal laws** are laws which are enacted by the Federal law-making organs i.e. (the Federal legislature like the HPR and the Federal Government-executive agencies)

- B. If the parties to a suit are those specified or administered by the Federal laws, the power to entertain the case resides in the Federal Courts. **For instance**, either or both of the parties to a law-suit are a federal organ or official (employee); or, if it is between parties permanently residing in different Regional States; or, if one of the parties is a foreign national, then it shall be considered by the Federal Courts. See art. 5 of the proc. No 1234/2021.

2. The place where the case arose

The disputes arising in either Addis Ababa or Dire-Dawa would be within the competence of the Federal Courts-regardless of the identity of the parties.

3. The nature/type of the suit itself.

Suits involving matters of nationality, issues of business organizations registered or established by the Federal Government; or, those regarding negotiable instruments (cheques, letter of credits, etc.), or, case relates to patent or copy rights, or, case based on insurance policy; and, an application for Habeas Corpus.

Material jurisdiction is one of the three basic requirements of jurisdiction and has two aspects. These are subject matter jurisdiction and pecuniary jurisdiction.

In principle, State subject matter is a matter that arises on the basis of State Law. **However**, there are conditions where issues raised on the basis of State Law may be categorized under the jurisdiction of Federal Courts. In such a case, State Courts will handle the Federal case through delegation.

I. Jurisdictional Limits of Courts: Pecuniary Amount Vs. Types of Cases

See page 66-67 on TM

Jurisdictional Limits of State Courts: SNNPR courts establishment Proc. No. 43/2002 & its amendment Proc. No.130/2009.

Determination of Amount in Controversy

As a rule the amount of money a case involves is gathered from the statement of claim of the plaintiff.

NB. If a plaintiff is seeking the recovery of a specific thing, he has to indicate the actual value of the thing in the statement of claim. The plaintiff is required to estimate the value of the thing he is claiming to identify the court that has material jurisdiction.

III. Type of Cases: Exclusive Jurisdiction

Exclusive jurisdiction means that a jurisdiction given to the court irrespective of the pecuniary amount involved therein. According to Art 11 (2) of the Proclamation, the Federal High Court shall have exclusive First Instance Jurisdiction over issues related,

- Cases whose subject matter regarding private international law, or
- Nationality
- Application regarding the enforcements of foreign judgment, or
- Applications for change of venue, from one first instance court to another or to itself, in accordance with the law.

3. Local Jurisdiction

The identification of both the judicial jurisdiction and the level of court within the material jurisdiction of which the case falls does not conclusively resolve the issue all together; because, there still remains an indispensable point to be settled.

Assume, for instance, it has been established that the Ethiopian Courts have judicial jurisdiction over the parties, and, consider further that the case is found to fall within the material jurisdiction of the Federal First Instance Court. Now, therefore, noting the fact that there are First Instance Courts both in Addis Ababa and Dirre Dawa; and that there are several of them in each sub-cities of both main cities, identifying the specific Federal First Instance Court from among these will thus, be the task to be accomplished by the rules on “Local Jurisdiction”.

Local jurisdiction takes us to the specific court to which a law-suit is to be submitted; and, it allocate cases among the same level of courts (e.g. The Federal First Instance Courts).

- ✚ The aim of the local jurisdiction is to avoid **forum shopping** (entertaining the same case in more than one court).
- ✚ L.J. enables one to refer the case to a particular court convenient for the parties and their witnesses, particularly, the defendant.

The Basic Place of Local Jurisdiction

Art 19(1) of the Code stipulates that the basic place of local jurisdiction lies with “...*the court of the place where the defendant actually resides or carries on business or personally works for gain.*”

A. “...actually resides...”

A person may happen to be at different places at different times in this case we can determine **such a place** by observing the length of time one might stay at a place. And, if it is observed that one spends almost equal amount of time at all the places; then, all of them may reasonably be considered as the residence of the person concerned.

Our Civil Code has envisioned resolving the matter by characterizing one of those places as a “**principal residence**” (someone stays more normally or more frequently, or for the longest period). and considering all the remaining as “secondary” ones.

For purposes of local jurisdiction is the place where he actually resides which probably is the place where it is convenient for one to defend a suit brought against him.

B. “...carries on business...”

A person may have his business or may work in a place different from the place where he resides. If a perhan lives in one woreda guezat and has a business in another woreda guezat, he is subject to local jurisdiction in each woreda guezat court. **Moreover** if a person carry on a business through an agent, he is subject to the suit at the place where the agent is carry on business on his behalf even though he is not physically present there.

In a case involving joint defendants, suits may be instituted in the court of any of the places where any of the defendants resides or carries on business or personally works for gain.

As per Art 20 if the defendant does not reside, or, carry on business or work for gain in Ethiopia. In such a case the suit may be instituted in any court in Ethiopia where the plaintiff prefers; **unless, the suit relates to an immovable property of the defendant;** in which case it is the court of the place where the property is located.

The basic place of local jurisdiction of suits against legal persons: suits against a business organization are to be instituted at the place where the head office or the branch office against which the suit is made is situated.

Local jurisdiction for cases instituted against the Government (article 21).

Here regard is given to the plaintiff’s convenience. The plaintiff’s residence or work place is taken as a base for determining local jurisdiction. **The rationale behind** such stipulation could supposedly be the fact that the Government, as a defendant, can suitably defend itself everywhere in the country.

Suits that should only be instituted in the court of the place where the immovable property is situated. See art 25.

The reasons for the rule are:

- i. Such property cannot be transferred from place to place; it will be difficult for a court other than the court where the property is situated to view if it finds it necessary.
- ii. In cases where dispute is on boundary matters that may necessitate measurement of the boundary, or essential document about the property are found in the place where the property exists.
- iii. Where the case is defendant upon the testimony of witnesses, such witnesses probably reside at the place where the immovable is situated.

Therefore, such suits must be instituted at the situs and not elsewhere. Suits regarding pledge, deposit or bailment may be instituted in the court of the place where the property is situated.

Suits for Wrong Done to Persons or Movable Property 27(1) or it is refers to local jurisdiction in case of extra contractual liability. Such suits may be instituted in the court of the place where the wrong was done or in accordance with the provisions of art 19.

Suits upon Several Causes of Action:

Where a suit is based upon several causes of action arising in deferent places, the suit may be instituted in any court that has jurisdiction over one of the causes of action.

NB. The rule on joinder of causes of action is subject to the provision of Article 25.

2.3. Change of Venue (Transfer of Suit) and Removal of Judges

Transfer of suits or change of forum: a place of local jurisdictions may not be convenient for either or all of the litigating parties for certain reasonable grounds. Art 31 way outs to such problem.

The transfer is to be ordered where there exists a problem with the proceedings in the court where the case is originally instituted.

There are three grounds that justify such transfer as per art 31.

- ✚ When there is an allegation that a fair and impartial trial cannot be made in the court where the suit was instituted.

If the case is filed in the woreda court the application for transfer must filed to high court and if the case is filed in the high court the application for transfer must filed to Supreme Court.

The transfer of suit effected for the court that have material jurisdiction and if there is no court that have such jurisdiction **the court of application for transfer filed shall hear the case (31/c/ii).**

1. There is an allegation that a fair and impartial trial cannot be made in the court where the suit was instituted.
2. Case involves some question of law of unusual difficulty or it involves interpretation of complicated code provisions that has not been interpreted before.
3. Where the court seized of the case is found to be inconvenient to the party so demanding. Art. 31/1(c) must be interpreted narrowly.
4. When a pleading submitted to a court is amended and this makes the case to fall under the jurisdiction of a higher court, the court that was holding the case shall transfer it to the higher competent court. Implied under art. 91.

2.3.1. Withdrawal or removal of judges

Reasons that may lead to the removal or withdrawal of judges from a bench are listed down under article 33 of the Proc. No 1234/2021.

1. Conflicts of Jurisdiction: Priority, Pendency and Consolidation of Cases

There is a possibility for conflicts of jurisdiction to emerge between courts, for instance, the Federal and State Courts; or, within a single judicial structure. Where a court alleges that the matter falls within its jurisdiction while the other contends that it has the competence over the same case. ***The power to determine on such conflict of jurisdiction is conferred upon the Federal Supreme Court.***

The same rule applies in instances where two or more courts dismiss a case on the ground that it does not fall within their respective jurisdiction.

As a rule, a suit arising from a single cause of action may not be instituted and/or tried by more than one court at a time **reasons are** to avoid the possibility of inconsistent judgments that may be rendered on a single case; thereby, making its enforceability practically impossible.

Rules of priority, pendency and consolidation to solve such problems of conflict of the jurisdiction.

A. Priority see Article 7

The question of priority arises when a plaintiff institutes two or more suits on the same cause of action in different courts. ***Assume that A is claiming certain amount of Birr from a defendant on a contract that***

was made in Addis Ababa and to be performed in BahirDar. In such a situation, if the plaintiff institutes a case in both courts, it will result in the harassment of the defendant to defend his case in both areas.

B. Pendency see article 8

As a rule, no court shall try any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties in another court in Ethiopia having jurisdiction. It can serve as one of the grounds for preliminary objection as per Art 244(2), whereby a party may oppose the second suit.

C. Consolidation of Suits, where the claims of both parties are separate while the matter in issue in one suit is closely related to a suit pending in another court.

Consolidation is a procedure that is applied when two or more suits pending in different courts or the same court and between the same parties give rise to similar issues and are to be decided in different courts. For instance, in a suit for recovery of a property by one claiming a right to possession and a suit by the possessor claiming that the plaintiff in the other action has committed a trespass to the same property. **In both cases, the issue is the same: who is entitled to the property?** In such a situation, **either party can make an application to a higher court** that the cases be consolidated for trial under Art 11-whereby the higher court will direct one of the subordinate courts to try the case.

CHAPTER THREE

PARTIES TO AND DIMENSION OF SUITS

3.1. Parties to a Civil Suit: General Requirements

Third party defendant also called intervener.

All parties participating in a civil suit should have capacity, art 31. Because Being a party to a suit is one of the juridical acts. Incapable persons cannot be parties to a suit, and, thus, they cannot sue or be sued in their own names **art 31(1)**. Every person is presumed to have capacity to perform all juridical acts unless provided otherwise by law. If one of the parties is found to be an incapable person, the court can, by its own motion or by the application of another party, suspend the litigation until a proper representation is made.

3.1.1. Party Plaintiff and Party Defendant

1. Party Plaintiff: Vested Interest: see 33(2)

To be plaintiff, the first requirement is to possess capacity to perform juridical acts in general. The other requirement is that a person must be the real party interest with regard to the particular claim or allegation he brings to a court of law against another party. It means that the name plaintiff should possess the right required to be enforced under the governing substantive law.

The reason why the law attaches this requirement to party plaintiff is because a civil suit concerns individual interest/ right. It is up to a concerned party only to either litigate or abandon a claim. Hence, no other person could decide to bring action for a real party with interest in a suit. Another reason may also be to avoid defendant facing two suits over a single cause of action.

A question of vested interest is also raised in suits based on loss of support as a result of the death of a person in such a case persons who are entitled to claim compensation from plaintiff are listed under Article 2095 of CC.

Effects of Lack of Vested Interest: Absence of a vested interest in a suit is a ground of preliminary objection under Article 244(2).

The court makes the substitution or addition if a suit is made by such plaintiff through a genuine mistake as per article 40.

If a suit is made by a plaintiff deliberately to benefit from a claim in which he knows that he does not have a vested interest the court shall dismiss his case and impose penalty on him for creating inconvenience to defendant, and he could also face criminal liability. See art 481.

The substitution or addition can also be made by a court's own initiative. Without relying on the objection of a defendant, the court may order the substitution or addition of party plaintiff by looking at a claim made by wrong plaintiff.

If the defendant fails to raise objection on the ground of lack of vested interest and a decision is made for a party without vested interest, the defendant cannot object to a second suit made by a real party with interest.

What he or she should do in such case is to satisfy the claim of the real party with a vested interest and bring a suit against the other party on the basis of the provisions of the law of unlawful enrichment to recover what he has already paid for him

2. Party Defendant: Allegations

To be considered as a defendant, there must be an allegation made against a person, see art 33(3). A person sued must be the one responsible for the wrongs committed and claims arising therefrom. Because courts are there to settle real disputes and, hence, if no claim is made against the defendant, he cannot be made a defendant in a suit. See art. 224.

The suit must show relations between parties and wrongs done to plaintiff and claims made by him.

3.1.2. Representation in Civil Suits: Types and Requirements

Representative suit is a suit in which others represent real parties to a suit. This means representation is a rule in most civil cases, and appearance in person is an exception. Appearance is only when the court order.

The types of representation can be categorized generally into two:

1. Representation for the interest of the real parties to a suit, they act on behalf of real parties and do not have their interest at stake in a suit. This category includes the representations specified under Articles 34, 57-64.
2. Representation in which the representatives represent the interest of others as well their own interest. See article 38.

Legal Representation: Types and Requirements:

The representation under Article 34 is known as legal representation. A legal representative represents persons under incapacity.

Representative Class Suits: Requirements: article 38.

The reason why this representation is allowed is because a suit involves several persons and that it is inconvenient for all concerned to be parties. It is inconvenient for such a group of persons to proceed with a case individually.

The requirements for this representation to apply are that the parties should have the same interest in a suit; that they agree to be represented; and that the number of parties is more than two since the provision demands the number of parties to be several.

➤ *What does the phrase “same interest” mean here?*

All represented have a common interest, that all have a common grievance, and that the relief they demand is beneficial to them all. However, it does not mean that the claim of parties has a single cause or that it arises from the same transaction only.

By the same interest, it means that as plaintiffs, they must demand the same relief against the defendant for the same wrong committed against all of them; as defendants they must be invoking the same defense against the plaintiff on the same cause of action.

Another requirement under Article 38 is that the parties should consent to be represented. A person not willing to be represented can bring his own separate suit.

3.1.3. Agents and Pleadors (article 57)

A legal representative, agent or pleader of a person may make any appearance, application or act in or to any court. The requirement is that such representatives are able to answer all the material questions relating to a suit. **See article 57-63**

- A person can also be represented by his **pleader/advocate**. **Requirements cumulative are advocate license & letter of authorization** from a person who authorized him. See article 63.

3.2. Joinder of Parties and Causes of Action

The issue here is how two or more plaintiffs bring action against a single or more defendants, and how many causes of actions can be made subject to a single suit.

3.2.1. Joinder of Parties

There are two conflicting views in favor and another against the necessity of the joinder of the parties.

1. in favor of Joinder of Parties:

- ✚ Joining parties and causes of action makes parties to pool their resources together and enables them to share costs of pursuing a suit.
- ✚ Relieves a burden of court in a sense that a court resolves cases involving many persons or causes of action by a single suit.
- ✚ It avoids the possibility of making conflicting decisions.

2. Against joinder of the parties:

- It expands the scope of litigation and consequently causes delay of proceedings.
- It results in embarrassment of the defendant and makes him not to be able to properly defend himself.

The rule under Article 221 of the Civil Procedure Code tries to strike a balance between these two conflicting interests toward joinder. Therefore if joinder of causes of actions in a statement of claim results in a delay of proceedings or embarrassment of defendant, the court may order separate suits.

Joinder is allowed so long as it does not bring about delay of proceedings or embarrassment to a defendant.

3.3.3. Forms and Types of Joinder of Parties

Joinder of plaintiffs: bring action against a single defendant or joinder of defendants, a single plaintiff brings action against two or more defendants.

Joinder of plaintiffs and joinder of defendants: when two or more plaintiffs file a suit against two or more defendants.

There are two types of joinder of parties.

1. **Permissive joinder of parties.**

Here the motion of parties makes the joinder. The parties entitled to join can choose between joint actions or separate suits. They are not obliged to bring a joint action or defense. See article 35, and 36(1, 2, 3,4,5,6).

Joinder applies to plaintiffs, art 35. Plaintiffs could bring a joint action if two requirements are met.

- A. The right to relief must arise from the same transaction whether jointly, severally or in the alternative. This means the claims of persons to join must be related in the sense that they should arise from the same source. Here, by the “same transaction” it does not mean that the parties to join should have the same interest unlike the requirement under Article 38. Therefore the parties may claim different remedies. **What matters here is the source of claim.**
- B. If there is a common question of law or fact that would arise if such persons made separate suits.

The phrase “**series of transaction**” means a series of acts that cause damage to some person. For instance, a car hit electric pole which caused fire, which in turn, resulted in the burning of houses. The owners of the houses burnt can bring a joint action against the owner of a car since the owner is responsible for hitting the electric pole that caused the burning of houses.

Common question of law or fact means those questions of law (issue of law) or fact (issue of fact) arising out of the claims in a particular case before the court.

The second form of permissive joinder is the joinder of defendants, art 36. Joinder of defendants refers to a situation where two or more persons are jointly sued by a single or more plaintiffs. There is one requirement that applies to the joinder of defendants, i.e. there must be a **common question of law or fact**, if separate suits were filed against the defendants.

- The persons sued together arise from the same transaction. Because it is less likely that there will be a common question of law or fact if the suits arise from separate transactions.

Article 36(2) makes an exception to Article 36(1) in the sense that there is no requirement of common question of law or fact. See example on page 94 on TM.

3.4. Joinder of Causes of Action

A statement of claim shall be rejected if it does not indicate a cause of action, Article 231.

The term “cause of action” is too ambiguous to provide a meaningful guide.

- It can be equated with the right of action or legal right forwarded by facts relied upon by the plaintiff. It means that it is related to the nature of the injury alleged to have been suffered.

Here, the focus is on the harm against a person than the acts that caused the harm; such as, breach of contract, bodily injury, etc.

- It can be defined by the facts or occurrences that give rise to a claim for relief without particular reference to the substantive law to be applied, or the nature of relief sought.

Parties are allowed to join as many causes of action as possible so long as joining of causes does not bring about delay of proceeding or embarrassment to a defendant. Parties are allowed to join even unrelated claims. For instance, a plaintiff could join cases over contract with tort and bring a single action against a defendant. Also see article 217.

The exception to this rule is provided under Article 218, which provides that claims for the recovery of immovable property may not be joined with other kinds of claims except those involving such property.

Another exception is provided under Article 219. A claim by or against an executor, administrator, or heir in his representative capacity cannot be joined with a claim by or against him in his personal capacity.

3.4.1. Effect of Misjoinder and Non-Joinder of Parties

No suit shall be defeated by reason only of the misjoinder and non-joinder of parties... article 39(1). This article deals with the effects of mis-joinder or non-joinder of parties relating to a permissive type of joinder. Therefore If the joinder is a permissive type a court does not dismiss a case for the reason that there is mis-joinder or non-joinder of parties.

If a party is not joined or is improperly joined, the appropriate measure is not to dismiss a case but to drop a party improperly joined and demand substitution, and proceed with the parties before a court.

If there is non-joinder, the court shall proceed with the case irrespective of such nonjoinder. If there is improper joinder of defendants, the plaintiff should be given the option to drop the defendants improperly joined or to proceed with separate suits.

Mandatory Joinder or Joinder of Indispensable Parties.

Parties are under obligation to bring a joint action or defense. Mandatory joinder applies to both plaintiff and defendant. Except for Article 36(3) and (4), which applies to joinder of defendants, **the CPC does not have an explicit rule on mandatory joinder of plaintiff.** This may be because mandatory joinder is a question of substantive law than procedural rules. It is the rules of substantive law that require that a right should not be exercised otherwise than by or against all persons concerned.

Mandatory joinder applies to certain categories of persons.

The first category consists of persons required by substantive law to exercise their rights jointly at a time, Joint owners, joint creditors or debtors, husband and wife over common property. In all of these cases, the

interest and claim belongs to all of them and not to one of them only. The absence of one will necessarily affect one's right.

The other category comprises of those who can be affected by a decision given in their absence. If a decision affects persons who are not made a party to a suit, such persons are considered to be important for making a decision and should be made a party from the very beginning. This includes persons who are entitled to oppose the judgment under Article 358.

What will be the consequence if there is non-joinder of an indispensable party?

If the mandatory joinder is related to a defendant, the court shall order the joinder of such party, by issuing summon on him. He cannot refuse to be a named defendant. Thus, in case of non-joinder of a party defendant, the rule under Article 39, 40(2) applies.

If there is a non-joinder of a party plaintiff, the court may, by its own motion or upon application of one party, add him a party to a suit subject to his consent. 40(2)

If a plaintiff who is an indispensable party does not consent to be a party to a particular suit, article 39 is not applicable to such cases because parties are supposed to be joined as a matter of obligation.

There are two options available to a court if an indispensable party plaintiff is not willing to join a suit as a named party plaintiff.

One is to proceed with the case regardless of the absence of such party, since it is unfair to deny the parties who brought action the remedies they are seeking from a court for the sole reason that a party refuses to become a party. Hence, rather than dismissing a case, the court shall make such party a defendant. As a defendant, he is merely on a record of court and does not have any responsibility to defend unlike a proper named defendant.

Another option available is to dismiss a case if a party plaintiff refuses to be added as a party plaintiff. This is because it is an indispensable party that is not joined. Thus according to this option, the parties are not under obligation to exercise their rights jointly, and if one does not join or refuses to be joined, the case shall be dismissed.

3.5. Interventions: Conditions and Types

Intervention is a mechanism by which a party is brought into a pending case to present a claim or defense.

It is different from joinder of parties. Joinder is an issue that comes at the beginning of a suit, while intervention is a question that comes into picture after a suit undergoes some steps.

Intervention makes a court to rule on cases involving many persons concerned by a single decision rather than entertaining separate suits on essentially one cause of action.

There are two types of intervention.

1. **Intervention made by an application of a third party himself.** It is a party himself who approaches a court to intervene in a suit.

According to Article 41, a party who wants to intervene shall file a written application in which he is expected to state reasons justifying his intervention. The application shall be filed at any time before a decision is given. To intervene, **a party must be interested in suit between other parties.**

Therefore requirements are

- **Interest on a case, indispensable party**
- **Application before decision**

The phrase “interested in a suit between other parties” means a party’s interest that is to be affected. It determines whether an intervener gains or losses by the direct legal operation of the judgment to be rendered in a suit between other parties. Unless a party gains or loses something, he may not intervene (**because intervention widens the dimension of a dispute and causes delay of proceedings**). Hence, intervention is allowed if it is requested by an indispensable party.

For instance: For example, if "A" makes a suit against "B", "C" could intervene if the subject matter of a suit is related to the property under a joint ownership of "C" and "A".

Intervention may also be allowed to persons likely to be affected by a decision given in their absence. **For example**, "A" has a car that is subject to insurance by company "X". If the car causes damage to C, and C filed a suit against "A", the company may intervene; because it is supposed to indemnify "A", if a decision is made against him. Another example, if a suit is made by "A" against "B", who is an agent of "C", "C" may intervene, since an agent will be indemnified by principal for damages he causes to third party in carrying out his function as stipulated in agency contract where the action relates to the matter that has been done by the agent on behalf of the principal.

If an application for intervention is granted, the proceedings are suspended until the original parties have been served with a copy of the statement of a party who is allowed to intervene. The effect intervention produces is that a decision given on a case also binds the intervener.

What remedy is available to a party whose application for intervention is rejected? In one case decided by the Federal Supreme Court, the Court admitted the appeal of a party whose application for intervention was dismissed by the High Court, and ordered the High Court to allow the intervention requested by him. The Supreme Court said that his non-intervention causes another suit to be filed by him after a decision is made by the High Court. It stressed that this would cause multiplication of lawsuits and would amount to wasting the precious time of a court on a single cause of action.

2. Intervention as of obligation, (42).

This kind of intervention places the Public Prosecutor under obligation to intervene in some civil cases. The Public Prosecutor is under obligation to intervene, if parties concerned in such types of suit have initiated a suit. Cases related to civil status, incapacity, marriage and bankruptcy.

Third-Party Practice [Impleader]: Purposes, Requirements and Consequences

Third-Party Practice or Impleader is a mechanism by which a defendant brings into a suit a third party on the ground that such third party covers or shares the whole or part of claim of plaintiff. It is initiated by a defendant.

The purpose of third party practice is to settle claims involving the same cause of action/ transaction in a single suit. It aims at avoiding separate suits over the same cause of action/transaction.

The defendant is not under obligation to bring a third party into a suit. It is entirely optional and that the defendant may claim against the third party in a separate suit. **Since e 43(1) says “may”.**

➤ Requirements:

1. Defendant shall ***demand third party intervention*** in his **statement of defense**. In his application, the defendant is supposed to indicate the reasons why he demands the intervention of the third party. The reasons provided by defendant must indicate that he is entitled to contribution or indemnity from such third party.
2. ***Extent of contribution/indemnity*** to be made or covered by such third party must be mentioned.

If these requirements are fulfilled, the court issues summon on the third party together with a copy of the statement of claim and the statement of defense and require him to appear at a fixed date. If the third party fails to appear on the date he is supposed to appear, he is deemed to have admitted the existence of contribution or indemnity between him and the defendant. **See article 76.**

The application for third party practice is subject to a time limit.

The defendant should raise it as soon as he appears before a court to make a defense against a claim of the plaintiff. **It means that he should file an application during the first hearing of a suit.** If he fails to demand the third party practice at this time, he is precluded from doing so at a later stage of the proceedings.

 **NB. Even if the requirements for the third party practice are fulfilled, it does not follow that the third party practice is allowed since it may unduly complicate the original suit or result in delaying its resolution.**

3.6. Change of Parties

There is a possibility that others can replace the original parties upon death of one of them and the suit continues. See e 48(1).

Unless the subject of a suit is related to a personal obligation of the deceased person, a suit is said to have survived a person's death. *For example; "X" brought a suit against "Y" to claim compensation for the material damage caused by his act. While a case is pending, if "X" dies, his heirs may claim compensation and proceed with the case already filed by "X". The mere fact of the death of "X" does not terminate the suit which was pending between him and "Y". The heirs of "X" can replace "X" and pursue the suit against "Y", particularly, if the damage is one to property.*

There is no change of parties if the court concludes the hearing of a case and adjourns the case to make a decision even if one of the parties dies, Article 53, because the only thing that remains after the conclusion of hearing of cases is to pass decision.

- *According to the draft Civil Procedure Code, the change of parties may take place if one of the parties to a pending suit assigns the subject matter of the suit to another person.*

CHAPTER FOUR

PLEADINGS AND PRE-TRIAL PROCEEDINGS

4.1 Pleadings

The proceedings in a court of law are set in motion when a court accepts the pleadings filed by a plaintiff and orders the defendant to appear and defend. Pleadings mean all formally written statements filed to a court of law by parties to a suit with respect to their respective claims and/or defenses. Inferred from article 80(1). The CPC does not define pleadings in a direct way. However, under Article 80(1), it contains, formally written statements that constitute statement of claim, statement of defense, memorandum of claim, appeal, and **provides that these documents must be the ones that initiate proceedings in a court of law and make replies thereto.**

- Any document that does not set in motion proceedings in a court of law or that does not make a reply thereto **does not amount to pleadings.**
- A document is said to originate proceedings in a court of law if it is made with a view to getting enforcement of right or claim.

Pleadings serve various purposes:

1. They provide the defendant with notice of the suit and enable him to prepare his defenses accordingly.
2. They provide a summary of the claims and defenses of parties to a court, which enables a court to frame the appropriate and relevant issues that need decision.
3. They fix the issues to be decided, and in a way, limit the scope of litigation between parties and determine the evidences to be used by the parties. The court cannot create issues of its own and then pass decision. It is based mainly on pleadings of parties that the court tries to frame issues. The main source for the framing of issues is the pleadings submitted to a court by parties, as indicated under Article 248.
4. They guide the parties and the court in the conduct of cases. A litigant cannot prepare for trial unless he has been informed adequately of the opponent's contentions. There is no way that a court can control a suit unless it knows the nature of the parties' allegations.
5. They try to expedite litigation.

4.1.1. General Pleading Rules: Requirements and Effects of Non-Compliance

There are certain requirements that pleadings should fulfill in order that a court admits them. The requirements relate to their preparation, format, and content. They can be divided into **technical** and **legal ones**.

Technical requirements relate mainly to the preparation and format of pleadings. The registrar of a court examines these requirements. The technical requirements are provided under Articles 80(2), 222, 223, 234, 327-330, etc.

- A. Pleadings shall be handwritten in ink, printed, or typewritten on the prescribed paper. See Article 80(2)
- B. They shall be prepared in accordance with the form prescribed by the Civil Procedure Code. The forms of pleadings are found at the back of the Civil Procedure Code.
- C. They shall be made as concise as possible and contain a statement of material facts on which a party relies for his claim or defense.

By a concise statement of material facts, mean that legal provisions and arguments shall not be incorporated in pleadings. This is because the purpose of pleadings is to furnish the court and the party with information as regards the facts of a case. Hence, it is the business of a court to look for the relevant provisions of the law applying to facts stated by parties.

A concise statement also means that the parties should not include issues of evidences in pleadings. Facts as regards evidences are to be raised at a separate stage, which is the trial. *A pleading stage is different from a litigation stage.*

- D. They shall be verified. See Article 92(1): The verification is made by signature or mark as the case may be. By verification it is mean that facts alleged in the pleadings are true and correct. If the facts are found out to be false allegations, the party is held responsible.

It has to appear in the following form.

I, -----, hereby declare that the facts stated in this claim/defense are true to the best of my knowledge and belief.

Date----- (Signature and description of the person verifying the pleading).

- E. They shall be signed by the party or person authorized to verify the pleading. See Article 93

- F. Annexes must accompany some pleadings. Annexes as provided under Articles 223 and 234 shall accompany, for instance, a statement of claim and statement of defense. The same is true for petitions and applications filed for special proceedings that are to be accompanied by affidavit.

What measure can the registrar take if one of these requirements is not complied with?

The registrar can reject a statement of claim as provided under Article 229.

If the statement of claim has not fulfilled the technical requirement, it can be rejected. Similarly, if pleadings presented at special proceedings are not, for example, accompanied by affidavit, the register shall reject them.

What will be the effect/consequence of rejection of pleadings by the registrar?

Rejection by the registrar does not prohibit a party from bringing a fresh pleading. The rejection by the registrar means that there is an error in the technical requirements of pleadings, and if the party corrects the defects, he can submit fresh pleading on the same cause of action. See Article 232

The registrar shall provide reasons for which he rejected pleadings. A party unsatisfied by such reasons can apply to the court (judge) to review the decision of the registrar. **The application shall be filed within five days after the registrar made a decision.**

If all the technical requirements are fulfilled, the registrar shall hand the pleadings over to a judge. The judge examines the pleadings to determine whether or not legal requirements are complied with.

4.1.2. Major Types of Pleadings

Statement of Claim: Requirements and Contents

Statement of claim is a pleading submitted to a court by plaintiff. It is also known as a complaint. The technical requirements we discussed earlier are applicable to a statement of claim. In addition to these requirements, a statement of claim shall contain certain items that are listed under Article 222. *The requirements for the statement of claim set forth in article 222-228 of CC.*

Four parts of the statement of claim

1. **Caption:** By caption, the plaintiff must state the name of the court in which the suit is filed, the title of the suit (Ato A v. Ato B), and the names of the parties including their description and address. If the plaintiff is under disability, this shall be stated; if the plaintiff is bringing action in a representative capacity, this shall also be stated. For instance, if he is an agent or advocate, this

shall be mentioned. If a person files it as an agent or advocate, the relevant documents shall be produced by such person to show that they are authorized to act on behalf of the plaintiff.

The mentioning of title of suit and address of the parties determine, among others, whether or not the court has jurisdiction.

2. **The statement disclosing a cause of action:** The statement of claim shall state the facts constituting a cause of action and when and where it arose. This is legal requirement. See article 231. Thus the court should examine the contents of the statement of claim filed to it.
3. **The jurisdiction (231):** Once the court has established that a statement of claim disclosed a sufficient and lawful cause of action, it then examines whether or not it has a jurisdiction over a case. Thus, the plaintiff must allege facts showing that the court has judicial, material and local jurisdiction.

For instance: in a case in the high court at Addis Ababa, the plaintiff could allege as follows, the defendant is the Ethiopian national (judicial jurisdiction), residing in the Addis Ababa (local jurisdiction), the case involves an automobile worth ETB 10 million (material jurisdiction)

A party shall state the value of the subject matter of a suit. If it cannot be stated in monetary terms, he shall state the nature of the suit.

What will be the effect if a statement of claim that does not contain facts showing a cause of action or jurisdiction?

Cause of action and jurisdictional issues are legal requirements checked by the judge. If the statements included in the statement of claim do not disclose them, it shall be rejected under Article 231. The effect of rejection is that it does not preclude the plaintiff from filing a fresh statement of claim later on. [See, Art 232 (2). Following the rejection, the court fee paid by the plaintiff shall be refunded to him since he has not received the service from a court.

4. **Relief sought:** The plaintiff shall state specifically the relief that the he or she claims. See article 224. Thus he must allege whether he wants damages and if so, how much, or if not, what other kind of relief he wants. He may ask for alternative relief. For instance, the plaintiff might sue for the specific performance of a contract, but if specific performance will not be ordered¹ then in the

¹ Specific performance will only be ordered where it is of the special interest of the to the party seeking it, and the contract can be enforced without affecting the personal liberty of the debtor

alternative he will seek damage. It is not necessary that he ask for general or other relief, e.g., interest on the debt. The court always gives the general relief whether asked for or not.²

It is on the basis of the relief claimed by a party that the court issues summons.

If the statement of claim fulfills all the technical requirements, and that there is no reason for rejecting it, the registrar shall proceed as per Article 230.

The registrar shall give number to a suit and register it on the register of civil suit. For example, the first civil suit filed in 2015, is to be registered as Civil Suit No. 1/2015.

The registrar examines and compares the original and copy of document attached to the statement of claim and gives the original to the plaintiff. Then, the registrar shall order the party to pay the court fee. The court fee to be paid depends on the value stated in the statement of claim. If the value of money is stated, a certain fixed percentage is imposed. If the value of money is not stated, the court fee to be paid is 25 birr. This occurs when the type of suit is not assessed in monetary terms.

Finally, the registrar shall submit the statement of claim and annexes to the court. The judge examines the statement of claim to establish whether or not it fulfills the legal requirements. If it is found to be sufficient in terms of fulfilling legal requirements, the court issues summons on the defendant. On the date fixed in the summons, both the plaintiff and defendant are supposed to appear before a court for the opening of the hearing of the suit. It is on this date that the statement of defense is examined by the court.

Statement of Defense: Purposes and Contents

Statement of defense is a pleading produced by the defendant. It is the pleading that contains material facts on which the defendant relies for his defense. It is subject to the rule under Article 80(2) and 223.

SD shall follow form prescribed by CPC. The content of statement of defense is given under Article 234.

The statement of defense has mainly two parts.

1. **Caption:** in which the defendant is supposed to state the name of the court to which he submits his defense, and the number of the suit.
2. **Statement showing the points of defense:** In this part, the defendant is expected to raise affirmative grounds of defense, which include facts showing that the claim of the plaintiff is inadmissible on the ground that he is incapable, or that the court lacks jurisdiction or that the action is barred by period of limitation, etc. Apart from these grounds, the defendant can raise any

² 224(1) of CPC

ground of objections to a suit. In addition, the defendant can raise a counterclaim or set off against the claim of the plaintiff.

In stating his facts of defense, the defendant must respond to each allegation of the facts made in the statement of claim whether he admits or denies them. The denial he makes must be put in a direct manner. Evasive denial does not amount to a defense under Article 235 rather it amounts to admittance. However such defenses are not considered to be admission if they are made by persons under disability (235). **Evasive denial is a denial in general terms.** For instance, saying that, “I am not responsible or I am not liable” is considered to be an evasive denial. Or “I am not responsible to the claim of the plaintiff” is not considered to have made a defense.

The same rule under Article 229 shall apply to the rejection of statement of defense. See also 238. The court can reject the statement of defense if it does not sufficiently fulfill the requirements it is supposed to comply with. **If the statement of defense is rejected, the court shall proceed with the trial of the case. The rejection does not mean that the case is to be decided for the plaintiff. This is because even if it is rejected, the defendant could defend himself orally under Article 241.**

If the defendant does not appear on the date fixed for the opening of a suit, or if he appears without statement of defense? If he appears with no statement of defense, the court shall proceed with the case. This is because he may defend himself orally or the plaintiff may fail to prove his allegation.

4.1.3. Effects of Failure to Plead

A party pleading is supposed to plead all the claims arising from a single cause of action. Issues are framed on the basis of allegations made in the statement of claim. If a claim is not included in the pleading, it is not put in issue by a court. Hence, the plaintiff is not entitled to raise this at a trial stage and produce evidence to prove it. This is because the other party is not aware of such issue and cannot get the chance to challenge it. If the plaintiff raises a new issue at a trial, the defendant is entitled to object to it.

Failure to plead means that the plaintiff omits some facts he could have alleged. The remedy for failure to plead at the beginning is to request an amendment of pleading.

Failure to plead produces effect if the defendant raises it. However, if the defendant fails to object to a new issue raised by the plaintiff at a trial, it means that he consents to the trial of that issue.

Failure to deny means that the defendant is not replying to some points of defense against the claim of the plaintiff. Denial should be specific. If the defendant fails to respond to every allegation contained in the

statement of defense, it means that he is indirectly admitting it. If certain points of defense are not raised by the defendant in the statement of defense, he cannot raise them at a trial.

4.1.4. **Alternative and Subsequent Pleadings**

An alternative pleading is optional grounds of claims or defenses relied on by a party. It is a pleading that aims at maximizing the grounds of claim or defense.

For instance, the plaintiff could plead that there is breach of contract and that he demands damage or that there is unlawful /unjust enrichment if no contract is found to exist. **Similarly**, the defendant could put forward a defense saying that there is no valid contract or that its performance is prohibited by force majeure.

As per Article 237, the defendant may state different and separate grounds of defense in a single statement of defense.

Alternative pleading does not mean that the plaintiff is entitled to double recovery for the same harm. He is merely basing his claim on optional grounds in order to maximize such claims.

Subsequent pleading is also known as further pleading. It means pleading again on the same issue on which the pleading already been made.

Further pleading is allowed in certain instances before the trial of a case. This is provided under Article 239.

Further pleading is allowed when the statement of defense contains counter-claim or set-off against the claim of the plaintiff.

When the statement of defense contains either counter claim or set off, which is not dismissed by a court, **the court shall ask** the plaintiff whether he wants to **reply** (*provide defense to the claim*) to such counter claim or set off claimed by the defendant. If the plaintiff does not want to respond to such counter claim or set off, the court should not order further pleading to be made by the plaintiff.

✚ Unless the statement of defense contains either set off or counter claim, the court should not allow further pleading for any other defense made by the defendant unless an amendment is allowed by the court.

When the defendant raises counter claim in his statement of defense, he becomes plaintiff. This is because he is raising a new claim against the claim made by the plaintiff and the claim raised by way of counter

claim can be filed as an independent suit. That is why the rule under Article 215(2) says that the defendant shall pay court fee.

The practice at present is that further pleading is allowed whenever a party requests even for a statement of defenses not containing counter claim or set off. It has become the practice that adjournment is made by courts so that parties are able to file a reply or a counter-reply for pleadings. This practice affects the purposes of civil procedure, which is to avoid the delay of proceedings.

4.1.5. Amendment of Pleadings (Article 91 and 252)

1) Nature and Purpose

Amendment of pleading presupposes that a technically and legally sufficient pleading has already been filed and that it is found to be defective in terms of what has been claimed or stated.

- The amendment is allowed to rectify defects in pleadings. Amendment is made when it is necessary for the purpose of determining the real issues in dispute.

Amendment introduces a modification to the content of the pleading already submitted to a court.

2) Grounds and the Process

The amendment is ordered by the motion of a court or by the application of a party. The amendment to be ordered by the motion of a court should be limited to exceptional cases where the error in pleading is likely to affect the substantive rights of a party.

3) Effects and Related Issues

Amendment brings into picture the consideration of two interests.

1. It causes delay of proceedings: because the proceedings will start as a fresh one.
2. It protects a party from losing his substantive rights or being affected as a result of pleading error.

The phrase in Articles 91 and 252, which says “necessary for the purpose of determining the real question in dispute” aims at striking a balance between these two interests. Another factor for striking such a balance is the imposition of damage on a party who requested the amendment of pleadings.

There is a liberal approach toward amendment and that the request for amendment should be taken into account in liberal manner that permits amendment. It is an abuse of discretion for the court to deny leave

to amend unless there is a demonstrable indication of prejudice to an opposing party. A party can request amendment at any time before a court renders decision.

- ❖ Introduction of new evidence could not serve as a ground for the amendment of pleading.

4.2. Pre-Trial Proceedings

4.2.1. Process of Service

After a statement of claim filed to a court is examined both technical and legal requirements, by the registrar and the judge respectively and if pass such examinations, the court notifies the opposite party of the fact that a suit is made against him through issuing and serving summons or notice on him.

A. Issuance of Summons

Summons, literally speaking, means to call someone to come. Legally, it refers to a formal mechanism by which a defendant is notified of a suit made against him and called upon to appear on a fixed time and date before a designated court to answer a complaint/allegation made by the plaintiff against him.

B. Purposes of summon:

1. It informs the defendant that a suit is made against him.
2. It also provides the defendant with an opportunity to be heard and present his version of a suit.

The authority to issue summons is vested in either the judge or the registrar of a court. See art 94(3). If the number of defendants is more than one, the summons shall be issued and served on each defendant.

C. Modes of Service

The items to be included in summons are:

The name of plaintiff and what he is claiming against the defendant, the name of defendant and his address, the time, date, and court before which the defendant is supposed to appear and to appear with his statement of defense, list of his witnesses, and documentary evidences in his possession, and list of documents that are not in his possession. In addition it shall disclose to the defendant that a case will be considered even if he fails to appear on the fixed date, or even if he fails to bring his statement of defense.

After summons is issued, it is collected from a court and served on defendant by the serving officer. To be a serving officer, the only requirement is the authorization of a court. At present, the practice of courts shows that the serving officers are usually plaintiffs. See 95(1)

Article 70(d) if it is proved that the summons was not served on the defendant or any one of several defendants through the plaintiff's negligence or default, the court may adjourn the hearing or order that the suit be struck out as against any defendant not served, or in cases of appeal, that the appeal be dismissed as against respondent not served.

For example, if the plaintiff served the summons on a child in the house of the defendant while he could have easily served the summons on the defendant, the plaintiff is said to be negligent in serving the summons on the defendant.

Summons for appearance of defendant (Art. 94)

*To ... "A" (Name, description and **residence**) Whereas ... "B"has instituted a suit against you for ... "C"you are hereby summoned to appear in this court in person or by a pleader duly instructed and able to answer all material questions relating to the suit, or who shall be accompanied by some person able to answer all such questions, on theday of19.....You must be prepared to produce on that day your statement of defense a list of all the witnesses you intend to call, stating their address and the purpose for which you intend to call them, a list of all the documents on which you intend to rely.*

Take notice, which, in default of your appearance on the day before mentioned or of your producing your statement of defense or any evidence, the suit will be heard and determined notwithstanding your default.

Given under my hand and the seal of the court, thisday of19.....Judge.

"A"--- name "B"---name of plaintiff "C"---Cause of action i.e. the source of claim of plaintiff

Different modes of service of summons: The mode of service of summons used determines its legal sufficiency. Service is legally sufficient if the mode of service used is reasonable under a given circumstance.

1. **Personal service:** Summons is said to be served in personal mode if it is received by the defendant himself from the hands of a serving office. It is principal mode of service see 95(3)

Personal mode of service is the best mode of service since the summons is actually handed over to the defendant himself. **It is when it is practically impossible to use personal service that other mode of service is to be used 105(1).**

Summon served on the defendant's agent who is authorized to accept service, and Summon served on pleader /advocate, is considered to be duly served on the defendant himself, see art 96(1&2). Therefore they are part personal mode of service.

Personal service also called Ordinary way of service

2. Constructive mode of service: Arts. 99 - 101.

When served on the defendant's agent who is not authorized to accept service;

When served on an agent in charge of immovable property, if the suit relates to immovable property. This service is possible if the defendant cannot be served personally and that he does not have agent empowered to accept service. **This service is applicable only if the suit relates to immovable property**

When served on the adult member of defendant's family. This type of service is used when the defendant cannot be found for the service of summon and that he does not have agent to receive summon.

3. Substituted mode of service: Articles 103 and 105

The least effective mode of service, it is the final mode of service used when all other modes of service are not applicable. It includes service by affixing a copy of summons in public areas, publication in newspaper, etc. If the serving officer cannot serve, he shall return it to a court. Then the court orders a substituted mode of service.

Acknowledgement of service:

The serving officer is under obligation to request the person served to sign an acknowledgment that he received the summons. The person served must sign an acknowledgement of service. See Article 102

The effects of refusal to sign acknowledgment: see 103 & 105(2)

The court orders a fresh summons or substituted service or the court may consider that the person is properly served and proceeds with the case. This is when the serving officer returned the summons to the court and produced an affidavit as to the facts that prevented him from serving the summons.

Effects of Non- Appearance of Parties

Both the plaintiff and defendant are expected to appear since at the first date of the opening of a suit. See Article 69(1)

Parties need not appear in person unless the court demands it.

The effects of non-appearance: depend on a party who fails to appear and on whether or not the summons is duly served on the defendant.

If both parties (plaintiff and defendant) fail to appear on the date fixed for the first hearing of a suit, the court shall strike out a suit.

If the appellant and respondent fail to appear on the first date of hearing of appeal, the appeal shall be dismissed. See Article 69(2)

If the defendant failed to appear, the court may issue fresh summons or proceed to hear the case in his absence.

The court does not have any discretion to make an order other than striking or dismissing a case if both parties fail to appear. Since art 69(2) is the mandatory rule

If the defendant appears but the plaintiff fails to appear, the court shall dismiss a case. The only question put to the defendant in case of non-appearance of plaintiff is whether or not he admits the claim of plaintiff. If he admits, the court makes a decision for plaintiff on the basis of such admission. If he denies, the court shall dismiss the case. See Article 73

The defendant should not be expected to defend himself on a claim of plaintiff in the absence of the complainant.

The court does not have any discretionary power to exercise if the plaintiff fails to show up before a court when the suit is called on for hearing. It cannot fix another date for the hearing of a suit either.

If the plaintiff appears but the defendant fails to appear, first the court should examine whether or not summons is properly served, the court should examine whether or not summons is properly served. If summons has been duly served on the defendant, the suit shall be heard in the absence of the defendant. See Article 73(a) ex parte hearing. The hearing of a suit in the absence of the defendant is known as ex parte hearing. The counter name of ex parte hearing in criminal cases is hearing in absentia.

The court does not have any measure to take other than considering the case in the absence of a defendant. If the defendant failed to appear, the court cannot decide the case for plaintiff for the sole reason that he failed to appear, nor can it adjourn the hearing of a suit.

Ex parte hearing does not affect the concept of hearing, which demands the participation of both parties to a suit.

Since, the defendant has received summons which notifies him of a suit and invites him to appear before a court but he failed to appear. This means that an opportunity to appear before a court has been given to him. Thus, if he did not appear, the court could proceed to consider and hear a claim filed by plaintiff.

If the court proves that summons was not duly served on the defendant, the court orders the issuance of second summon on him. But if the summons is not served on the defendant owing to the plaintiff's negligence in serving summons, the court may adjourn the hearing of a suit or may strike out if it is a fresh suit or dismiss it if it is a case on appeal. See Article 70(d).

***In ex parte hearing**, it does not necessarily mean that a case is to be decided in favors of the plaintiff and against the defendant. The court considers his claim and looks at his evidence. If he has a valid claim, it is decided for him; if he does not have a valid claim, it is decided against him.*

If a third party defendant (under Article 43) does not appear, the rule under article 70(a) does not apply. Rather as per art 76 the court decides that he has admitted the claim of defendant. The mere non-appearance of such party amounts to an admission of the existence of contribution or indemnity relations alleged by plaintiff. **This kind of judgment is known as default judgment.** It is a decision based on the sole reason of absence of third party defendant.

What if the defendant who cannot appear on the first day of hearing of suit appears on the day fixed for the next hearing of a suit? See 72

The fate of the defendant who could not appear on the opening of the suit depends on the presentation of good cause by him. If he shows good cause, he is permitted to defend himself.

What would be the fate of the proceedings already made?

Under art 72, the court can impose costs on the defendant because he became cause for delay of proceedings.

If the defendant convinces the court that he is prevented from appearing before a court for good reason, the case will be heard as a fresh

What will be the fate of the defendant who could not show good cause to a court for his non-appearance on the day fixed for the first hearing of a suit?

The court has two options to decide on this issue. The first is to prohibit him from participating in a suit at all since he does not have good cause for his previous non-appearance, which means that he is indifferent to defend himself. This is implied from Article 72 itself. **The second option is** to allow him to defend himself from where the proceedings begin on the next hearing of a suit. It means that he is considered to be present during the first hearing of a suit. He is not entitled to do what he could have done

on the first hearing of a suit. For example, he cannot raise any objection to a suit since objection is to be raised during the first hearing of a suit.

The rules on non-appearance of parties apply to any proceedings, be it first hearing, fullscale hearing, review, execution, etc.

A suit is struck out when both parties fail to appear (Art. 69), and when the plaintiff committed default in serving summons on the defendant (Article 70(d). see art 71, for the effect of striking out of a suit. **Striking of a suit does not prevent a party from filing a fresh suit on the same cause. The consequence it entails is payment of another court fee.** A plaintiff can even be relieved from paying a court fee if he shows the court that he was not able to appear because of sufficient good cause. Good cause is important **not to pay** a court fee, but not for initiation of a fresh suit. If a case is struck out, it is considered as if it were not filed at all to a court.

A suit is dismissed when the plaintiff fails to appear but defendant appears; when both parties fail to show upon appeal; and when an appellant is proved to be in default in serving summon on respondent (see Articles 69(2), 70(d), 73). If a suit is dismissed, the plaintiff is prevented from bringing a fresh suit on the same cause of action. **The dismissal leads to a loss of right to bring action, see 74(1)**

If a plaintiff is prohibited to appear before a court owing to good/sufficient cause he can apply to the court to get the dismissal set aside. Such application shall be within one month from the date an order is made by a court to dismiss the case.

The defendant in whose absence a case is heard and decided can also request the setting aside of ex-parte decision or default judgment. He could apply within one month of the day he became aware of such decision. If he has any good cause, See 78(1)

The determination of what amounts to **Good Cause** is subjective and depends on a case-by-case consideration of circumstances. The term “**good cause**” needs to be interpreted narrowly. This is because if it is interpreted broadly, any reason put forward by an applicant amounts to good cause and it may bring about delay in the trial of a suit.

The End!

Short Note from Civil Procedure Text Book Part I

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